

25NNCV04591 25NNCV04591

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-10

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Case Number: 25NNCV04591 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 4

Date: July 10, 2026

Case No: 25NNCV04591 Trial Date: August 23, 2027

Case Name: Vela v. General Motors, LLC et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Angelica Vela

Responding Party: Defendant, General Motors LLC [Unopposed]

Deficiencies to Note:

No proof of service

RELIEF REQUESTED:

Order awarding attorneys' fees and costs in the amount of \$20,033.19 comprised of attorneys' fees of \$18,891.00 and costs of \$1,142.19.

CAUSES OF ACTION: from Complaint

- 1) Breach of Express Warranty Obligations
- 2) Breach of Implied Warranty Obligations
- 3) Failure to Repair in a Good and Workmanlike Manner

SUMMARY OF FACTS:

This case is a lemon-law action. Angelica Vela ("Plaintiff") allege that on April 23, 2023, Plaintiff purchased a 2023 Chevrolet Silverado, for which General Motors LLC ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

Procedural

Proof of service of moving papers must be filed no later than five court days before the time appointed for the hearing on the motion. (California Rules of Court, rule 3.1300, subd. (c).) Here, there is no proof of service demonstrating that the motion was served on Defendant. This may explain the lack of opposition.

Accordingly, the motion is CONTINUED to August 28, 2026 at 8:30 a.m. Moving party is to give notice of the continued hearing date and file proof of service with the Court demonstrating that the motion was timely served in accordance with CCP section 1005.

RULING:

Plaintiff Angelica Vela's Motion for Attorney Fees is CONTINUED to August 28, 2026 at 8:30 a.m. Moving party is to give notice of the continued hearing date and file proof of service with the Court no later than five court days before the hearing.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.